

25SMCV05833 25SMCV05833

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C08%2F18%2F2026

Source SHA-256: 82a54abe65257bab22d936ab7b4f167982df6083c9db58ad33a524e679847aca

Case Number: 25SMCV05833 Hearing Date: August 18, 2026 Dept: 205

HEARING DATE: August 18, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: Barrister Executive Suites v. Parallax Education Inc., et al.

CASE NUMBER: 25SMCV05833

COMP. FILED: November 7, 2025

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: Barrister Executive Suites

RESPONDING PARTY: Parallax Education Inc. and Monica Ballard

BACKGROUND

This is a breach of lease case. Plaintiff Barrister Executive Suites entered into a written lease agreement with Defendant Parallax Education, Inc., for office space located at 4640 Admiralty Way, 5th Floor, Marian Del Rey, California. Defendant Monica Ballard is a principal and shareholder of Parallax and personally guaranteed the lease. As of November 30, 2022, the expiration of the lease, Defendants owed \$128,309.77 for unpaid lease payments and related fees. Plaintiff claims interest on the unpaid amounts at the legal rate of 10% per annum.

The operative complaint alleges claims for (1) breach of contract, (2) open book account, (3) account stated and (4) services rendered. The demand of the complaint was for \$128,309.77 plus interest, attorneys' fees and costs.

Plaintiff personally served Defendants on November 15, 2025. Defendants did not respond.

On December 30, 2025, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendants. This hearing is on Plaintiff's request for entry of default judgment.

REQUEST FOR RELIEF

Default judgment against Defendants for a total of \$176,895.56, which is comprised of: (1) \$128,309.77 in damages, (2) \$44,781.10 in interest, (3) \$631.60 in costs and (4) \$3,173.09 in attorneys' fees.

ANALYSIS

Code Civ. Proc. § 585 sets forth the two options for obtaining a default judgment. First, where the plaintiff's complaint seeks compensatory damages only, in a sum certain which is readily ascertainable from the allegations of the complaint or statement of damages, the clerk may enter the default judgment for that amount. However, if the relief requested in the complaint is more complicated, consisting of either nonmonetary relief, or monetary relief in amounts which require either an accounting, additional evidence, or the exercise of judgment to ascertain, the plaintiff must request entry of judgment by the court. In such cases, the plaintiff must affirmatively establish his entitlement to the specific judgment requested. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 287.) Section 585 also allows for interest, costs and attorney fees, where otherwise allowed by law. (Code Civ. Proc., § 585(a).)

Multiple specific documents are required, such as: (1) form CIV 100, (2) a brief summary of the case; (3) declarations or other admissible evidence in support of the judgment requested; (4) interest computations as necessary; (5) a memorandum of costs and disbursements; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code Civ. Proc. § 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (CRC Rule 3.1800.)

Here, Plaintiff has properly complied with all the substantive and procedural requirements for a default judgment. Substantively, Plaintiff declares via the declaration of its representative and director of lease processing, Tiffany Taylor, that there have been unpaid lease payments and fees in the amount of \$128,309.77. (Taylor Decl. ¶ 20.) The evidence submitted (lease, lease amendments, personal guaranty and account statement) is authenticated by declaration. Plaintiff has submitted the declaration of its counsel as to the calculation of interest and attorneys' fees. The amount of costs Plaintiff seeks is supported by a verified memorandum of costs. Procedurally, Plaintiff properly served Defendants more than 30 days prior to requesting entry of default and default judgment, correctly completed JC Form CIV-100 in a manner that would not void or put at issue the entry of default, provided a declaration of non-military status, requested damages in amounts supported by the filings and not in excess of the amount stated in the Complaint, requested dismissal of doe defendants and filed a proposed judgment (JUD-100). As default has already been entered and there has been no appearance by Defendants, default judgment is appropriate here.

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff's Request for Default Judgment is GRANTED. Judgment in the amount of \$176,895.56 is entered against Defendants Parallax Education, Inc. and Monica Ballard.